

22STCV33452 22STCV33452

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Division: Civil Law and Motion
Department: 506
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Case Number: 22STCV33452 Hearing Date: July 14, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

SAEROM HA, et al.,

Plaintiffs,

vs.

CENTURY WEST, LLC, et al.,

Defendants.

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CASE NO.: 22STCV33452

[TENTATIVE] ORDER GRANTING IN PART
MOTION TO TAX COSTS

Dept. 506

8:30 a.m.

July 14, 2026

On

May 13, 2026, Plaintiffs Saerom Ha and Jason Ha filed a memorandum of costs.

On

June 1, 2026, Defendants filed a motion to tax costs.

Defendants

generally argue that Plaintiffs have not submitted “a single page of backup documentation (e.g., invoices, bills, or receipts) to support any of the requested costs.” (Motion at p. 4.) However, “[a] ‘verified memorandum of costs is prima facie evidence of the propriety’ of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary.” (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486 (Adams).) “[I]f the correctness of the memorandum is challenged either in whole or in part by the affidavit or other evidence of the contesting party, the burden is then on the party claiming the costs and disbursements to show that the items charged were for matters necessarily relevant and material to the issues involved in the action.” (Oak Grove School Dist. of Santa Clara County v. City Title Ins. Co. (1963) 217 Cal.App.2d 678, 699.) In any event, Plaintiffs provided a

spreadsheet of costs and copies of invoices with their Opposition.

Aside

from arguments about the lack of documentation or items being listed under the wrong category, Defendants also challenge specific categories of costs as not being allowable or reasonable. A

prevailing plaintiff in a Song-Beverly action may recover all "costs and

expenses . . . determined by the court to have been reasonably incurred by the

buyer in connection with the commencement and prosecution of such action." (Code Civ. Proc., § 1794, subd. (d).) "[I]t is clear the Legislature intended the

word 'expenses' to cover items not included in the detailed statutory

definition of 'costs.'" (Jensen v.

BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137 (Jensen).)

Defendants

challenge the "repeated service of process to the same locations or for the

starkly different costs incurred for such service." (Motion at p. 5.) However, the costs for service were actually incurred, and they are reasonable. (Code

Civ. Proc., § 1033.5, subd. (a)(4).)

Defendants

challenge Plaintiffs' "unnecessary and excessive expenditure" of \$2,750.00 for

an expert who billed eleven hours and was not called to trial. (Motion at p. 5.) "The legislative history indicates the Legislature exercised its power to permit the recovery of expert witness fees

by prevailing buyers under the [Song-Beverly] Act." (Jensen , supra, 35 Cal.App.4th at p. 138.) As Plaintiffs further explain, their expert

"is the counter-part for Defendant's expert automotive witness," and his

"expert fees include time reviewing repair orders, recalls, service manuals,

deposition transcripts, and technical service bulletins to prepare to give his

opinions at deposition as well as educate Plaintiffs' counsels on the technical

information regarding the vehicle's defects which needed to be presented at

trial." (Opposition at p. 9.) The Court finds that this cost is reasonable.

Defendants

challenge Plaintiff's \$12,631.40 for "Other."

Within this category, only a few items warrant further discussion.

Plaintiff's

counsel's firm, "which is based in Los Angeles and consistently filed paperwork

with the Court with a Los Angeles address, is now asking the Court to require [Defendants]

to pay \$10,665.02 in travel costs for a case that was heard in Los Angeles Superior Court.” (Motion at p. 6.) These costs, labeled “Travel,” include mileage, Ubers, flights, parking, meals, and snacks in addition to 11 nights of hotel stays that average \$783.06 per night.[1] (Opposition, Ex. A.) Plaintiffs had Los Angeles-based counsel in addition to the trial counsel who flew from San Francisco. Plaintiffs have not shown that it was reasonable or necessary to spend so much money on flights, other transportation, and lodging for out-of-town counsel to join local counsel—nor have Plaintiffs shown that it was reasonable or necessary for local counsel to also stay at a hotel. The costs for counsel's meals and snacks are also not reasonably charged to Plaintiffs case expenses.

Finally,
\$16.44 for “AHDMI adaptor for Trial (03.18.26)” is an overall office expense and was not reasonably incurred for just this action.

The
motion is GRANTED IN PART. The Court
STRIKES \$10,665.02 for “Travel” and \$16.44 for “AHDMI adaptor for Trial (03.18.26).”

The
motion is otherwise denied. Plaintiffs
shall recover \$25,670.85 (\$36,352.31 minus \$10,681.46) in total costs and expenses.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 14th day
of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court

[1] The Court

calculated a total of \$8,613.61 for “Lodging/Hotel” in Plaintiffs’ spreadsheet. (Opposition, Ex. A.) The actual itemized invoices were submitted as screenshots from a phone and are illegible.